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No. 21-1397

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IN THE

Supreme Court of the United States

IN RE GRAND JURY

On Writ of Certiorari to the
United States Court of Appeals
for the Ninth Circuit

BRIEF FOR THE PETITIONER

Evan J. Davis
HOCHMAN SALKIN TOSCHER PEREZ P.C.
9100 Wilshire Blvd., Suite 900W
Beverly Hills, CA 90212
(310) 281-3200
Davis@taxlitigator.com

Daniel B. Levin
Counsel of Record
Jeffrey Y. Wu
J. Max Rosen
MUNGER, TOLLES & OLSON LLP
350 S. Grand Avenue
50th Floor
Los Angeles, CA 90071-3426
(213) 683-9135
Daniel.Levin@mto.com

Counsel for Petitioner

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HOCHMAN SALKIN TOSCHER PEREZ P.C.
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Beverly Hills, CA 90212
(310) 281-3200
Davis@taxlitigator.com

Donald B. Verrilli, Jr.
MUNGER, TOLLES & OLSON LLP
601 Massachusetts Ave. NW, Suite 500E
Washington, DC 20001-5369
(202) 220-1100
Donald.Verrilli@mto.com

Question Presented

Whether a communication involving both legal and non-legal advice is protected by attorney-client privilege where obtaining or providing legal advice was one of the significant purposes behind the communication.

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Parties to the Proceedings

The parties to the proceeding are identified in the Sealed Petition for a Writ of Certiorari.

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Corporate Disclosure Statement

The corporate disclosure statement included in the Sealed Petition for a Writ of Certiorari remains accurate.

CORPORATE DISCLOSURE STATEMENT

The corporate disclosure statement included in the Sealed Petition for a Writ of Certiorari remains accurate.

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OPINIONS BELOW

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Federal Rule of Evidence 501 provides:

> The common law—as interpreted by United States courts in the light of reason and experience—governs a claim of privilege unless any of the following provides otherwise:
>
> - the United States Constitution;
> - a federal statute; or
> - rules prescribed by the Supreme Court.

Federal Rule of Evidence 501 provides:

[1] The district court issued two versions of its order, redacting certain information from Petitioner's copy and redacting different information from the government's copy. The version of the order contained in the Petition Appendix combines those redactions, removing all text redacted from each version of the order. The redacted information is not relevant to the question presented.

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INTRODUCTION

The attorney-client privilege is a cornerstone of the American legal system. Without it, clients could not freely share information with their lawyers, and lawyers could not give their clients full and frank advice. Clients, however, routinely seek advice from lawyers with multiple goals in mind. And lawyers often respond in a way where legal and non-legal advice is intertwined. Those intertwined communications are known as "dual-purpose" communications. The Ninth Circuit in this case held that courts must evaluate all of the purposes for such a communication to determine the single primary purpose, and that the communication is privileged only when that one primary purpose is legal advice.

That approach is wrong. It unduly narrows the privilege because it withdraws protection from attorney-client communications that have a significant legal purpose any time a judge makes a *post hoc* determination that the communication also had some other, more important purpose. That inquiry requires courts to engage in an *ad hoc* balancing exercise that will create unacceptable uncertainty and deter open dialogue between lawyers and their clients.

To ensure that the attorney-client privilege receives appropriate protection in the context of dual-purpose communications, courts should ask a more straightforward question: whether the communication has a significant legal purpose. If it does, the attorney-client privilege should and must apply. That test faithfully implements the core purposes that the attor-

The attorney-client privilege is a cornerstone of the American legal system. Without it, clients could not freely share information with their lawyers, and lawyers could not give their clients full and frank advice. Clients, however, routinely seek advice from lawyers with multiple goals in mind. And lawyers often respond in a way where legal and non-legal advice is intertwined. Those intertwined communications are known as "dual-purpose" communications. The Ninth Circuit in this case held that courts must evaluate all of the purposes for such a communication to determine the single primary purpose, and that the communication is privileged only when that one primary purpose is legal advice.

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ney-client privilege exists to serve. And it will generate clear and predictable results that clients can understand and rely upon when deciding whether to trust their lawyer with sensitive information. This Court has repeatedly rejected unpredictable or uncertain privilege tests for failing to provide adequate protection in light of the privilege's critical role in our legal and compliance systems. That consideration strongly counsels in favor of adopting the significant purpose test and rejecting the Ninth Circuit's primary purpose test.

Petitioner, a law firm specializing in tax law, obtained information from and advised its Client about the many tax law issues that arise upon expatriation and prepared the tax filings required when a U.S. citizen expatriates. The Ninth Circuit held that certain dual-purpose communications made during that work were unprivileged because the legal purpose (advice about tax law) was not as significant as the non-legal purpose (tax form preparation work). By requiring that legal advice be the single primary purpose of the communication, the Ninth Circuit's approach denied the protections of the privilege to communications that had a significant legal purpose—communications that would unquestionably be protected had they not been intertwined with communications involving tax preparation work.

Clients and lawyers, including tax lawyers, routinely engage in dual-purpose communications and need clear and predictable rules that "encourage full and frank communication between attorneys and their clients." *Upjohn Co. v. United States*, 449 U.S. 383, 389 (1981). Indeed, the need for a robust privilege in the tax context is particularly important given the extraordinary complexity of the tax code and the need to

ordinary complexity of the tax code and the need to encourage taxpayers' voluntary compliance.

encourage taxpayers' voluntary compliance. Creating separate rules for tax cases would conflict with this Court's rejection of special privilege rules in other contexts. Such tax exceptionalism is also unworkable in practice because, as in *Upjohn*, legal advice about tax compliance often overlaps with advice on other legal issues. To protect the attorney-client privilege, this Court should adopt the straightforward significant purpose test and remand for the district court to apply that test to the communications at issue in this case.

STATEMENT

1. a. Petitioner is a law firm that specializes in international tax issues, including the practice of advising clients on the tax consequences of expatriation. JA 16. Upon expatriation, most individuals are subject to an "exit tax." 26 U.S.C. 877A. All of the individual's property is treated as sold for its fair market value as of the day before the expatriation date, and the individual must pay federal taxes for "any gain arising from such sale." 26 U.S.C. 877A(a)(1)-(2). The expatriate must also certify whether he or she has satisfied all federal tax requirements for the prior five years. JA 17.

Expatriation implicates complex legal issues, and the Client's expatriation involved a particularly novel set of legal issues. JA 16; JA 32. Petitioner provided legal advice to the Client about how to determine ownership of cryptocurrency assets, appropriate methods for asset valuation, and tax filing strategies. Pet. App. 28a-29a; JA 32. Petitioner also prepared several of the Client's individual income tax returns and the Client's Form 8854, to certify compliance with expatriation tax requirements for the year of expatriation. Pet. App. 28a.

Petitioner was subsequently served with a grand jury subpoena seeking documents in connection with a criminal tax investigation of the Client. Pet. App. 23a, 31a. In response to the subpoena, Petitioner produced over 20,000 pages of records, but withheld certain documents based on attorney-client privilege and the work-product doctrine. Pet. App. 31.

Petitioner was subsequently served with a grand jury subpoena seeking documents in connection with a criminal tax investigation of the client. Pet. App. 23a, 31a. In response to the subpoena, Petitioner produced over 20,000 pages of records, but withheld certain documents based on attorney-client privilege and the work-product doctrine. Pet. App. 31.

b. The attorney-client privilege protects from disclosure confidential communications between attorney and client made to obtain or provide legal advice. See *Fisher* v. *United States*, 425 U.S. 391, 403 (1976); Restatement (Third) of the Law Governing Lawyers § 68 (2000) (Restatement). "Its purpose is to encourage full and frank communication between attorneys and their clients and thereby promote broader public interests in the observance of law and administration of justice." *Upjohn*, 449 U.S. at 389.

In the tax context, courts have routinely held that "[t]ax advice rendered by an attorney is legal advice within the ambit of the privilege." *In re Grand Jury Subpoena Duces Tecum Dated Sept. 15, 1983*, 731 F.2d 1032, 1037 (2d Cir. 1984); *accord, e.g.*, *United States* v. *Abrahams*, 905 F.2d 1276, 1284 (9th Cir. 1990) ("[C]ommunications made to acquire legal advice about what to claim on tax returns may be privileged."), *overruled on other grounds by United States v. Jose*, 131 F.3d 1325 (9th Cir. 1997); *United States v. Cote*, 456 F.2d 142, 144 (8th Cir. 1972) (holding that communications designed to address "whether the taxpayers should file an amended return undoubtedly involved legal considerations which mathematical calculations alone would not provide" and were therefore privileged). But, particularly if an attorney is preparing a client's tax returns, not all communications will necessarily fall within the attorney-client privilege. For example, conveying the amount of a taxpayer's income and W-2 forms or the names of dependents so that the attorney can list that information on a tax form would not be privileged.[2]

[2]Several courts have held that communications with an attorney "made solely for tax return preparation are not privileged." *Abrahams*, 905 F.2d at 1284. This Court need not address here

c. Some of the communications Petitioner withheld on the basis of attorney-client privilege were made both to allow Petitioner to provide the Client with legal advice about how to comply with the tax laws and to facilitate Petitioner's mechanical preparation of the Client's tax returns. These "dual-purpose" communications included, for example, interpretations of unsettled statutory requirements regarding whether certain assets are subject to Treasury Department foreign reporting requirements, strategies for filing amended income tax returns, and the Client's questions about and comments on draft submissions to the IRS advocating for the abatement of a penalty assessment. See Part IV, *infra*. The government filed a motion to compel Petitioner to produce the withheld records. Pet. App. 31a.

2. The district court applied what is described as "the primary purpose test" to analyze the dual-purpose communications. Pet. App. 43a. The court rejected the government's assertion that legal advice could not be privileged at all if it "relate[d] to tax return preparation." *Ibid.* The court acknowledged that the D.C. Circuit had held, in an opinion written by then-Judge Kavanaugh, that the attorney-client privilege applies if "solicitation of legal advice was one of the material purposes of the communication." Pet. App. 42a (citing *In re Kellogg Brown & Root, Inc.*, 756 F.3d 754, 760 (D.C. Cir. 2014)). But the district court rejected that standard, holding instead that "the precisely where the line falls between communications related to the mechanics of preparing a return or effectuating basic mathematical calculations, which would not be privileged, and communications to ensure that a filed return complies with the Internal Revenue Code, which should be privileged because they will require judgments about what the law allows or requires.

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[2] Several courts have held that communications with an attorney "made *solely* for tax return preparation are not privileged." *Abrahams*, 905 F.2d at 1284. This Court need not address here precisely where the line falls between communications related to the mechanics of preparing a return or effectuating basic mathematical calculations, which would not be privileged, and communications to ensure that a filed return complies with the Internal Revenue Code, which should be privileged because they will require judgments about what the law allows or requires. See *United States* v. *Baucus*, 377 F. Supp. 468, 472-73 (D. Mont. 1974) (finding privileged the transmission of raw data to attorney "for the attorney to use his discretion to determine what portion of such information to insert on the income tax return." (citation omitted)).

relevant consideration is whether the primary or predominate purpose of the communication was to seek legal advice, or to provide the corresponding legal advice." Pet. App. 43a.

In the same subsection in which the district court held that the dual-purpose communications were not privileged under the "primary or predominate purpose" test, it separately found that other communications were not protected because one of Petitioner's non-lawyer accountants "provided advice as an accountant." Pet. App. 54a. The district court found, however, that this same accountant often served as an agent for the Client's attorneys, and when she acted in that agent role, communications between her and the Client for the purpose of obtaining legal advice were privileged. Pet. App. 51a; see also *United States v. Kovel*, 296 F.2d 918, 922 (2d Cir. 1961) ("the privilege must include all the persons who act as the attorney's agents") (quoting 8 Wigmore, Evidence § 2301 (1961 ed.)). The district court ultimately ordered the production of 54 documents as not privileged based on this part of its decision without specifying which of the two rulings in the subsection applied to each document. Pet. App. 54a.

Petitioner declined to produce the documents. The district court subsequently held Petitioner in contempt for its non-compliance. Pet. App. 20a. The court stayed its contempt sanction to allow Petitioner to appeal. Pet. App. 21a.

[3] Given the grouping in the district court order, Petitioner submitted a list of all 54 of those documents to the Ninth Circuit under the heading of "dual-purpose" documents. CA9 Opening Br. at 25 & n.15; *id.* at 59-60 (Ex. A). All of these 54 documents are included in the Sealed Joint Appendix, with the court-ordered redactions shown.

[3] Given the grouping in the district court order, Petitioner submitted a list of all 54 of those documents to the Ninth Circuit under the heading of "dual-purpose" documents. CA9 Opening Br. at 25 & n.15; *id.* at 59-60 (Ex. A). All of these 54 documents are included in the Sealed Joint Appendix, with the court-ordered redactions shown.

stayed its contempt sanction to allow Petitioner to appeal. Pet. App. 21a.

3. The Ninth Circuit affirmed. The court of appeals held "that the primary-purpose test applies to attorney-client privilege claims for dual-purpose communications." Pet. App. 6a. The court rejected the government's argument, based in part on Seventh Circuit authority, "that dual-purpose communications in the tax advice context can never be privileged." Pet. App. 5a n.2 (citing *United States* v. *Frederick*, 182 F.3d 496, 501 (7th Cir. 1999) ("a dual-purpose document—a document prepared for use in preparing tax returns and for use in litigation—is not privileged * * * .")).

The Ninth Circuit then addressed what test to adopt to determine whether a dual-purpose communication is privileged. Pet. App. 6a-12a. Like the district court, the Ninth Circuit recognized that the D.C. Circuit had applied a test that assesses whether obtaining or providing legal advice was "one of the significant purposes of the communication," rather than the primary purpose of the communication. Pet. App. 10a (quoting *Kellogg*, 756 F.3d at 760).

SUMMARY OF THE ARGUMENT

The Ninth Circuit first observed that *Kellogg*, the D.C. Circuit's opinion, "dealt with the very specific context of corporate internal investigations." Pet. App. 11a. The Ninth Circuit took that to mean that its reasoning does not apply with equal force in the tax context." Pet. App. 11a. The court of appeals went on to read *Kellogg* as treating communications as privileged only "in truly close cases, like where the legal purpose is just as significant as a non-legal purpose." Pet. App. 12a. Because the district court had concluded that "*the* predominate purpose of the disputed communications was not to obtain legal advice," the Ninth Circuit concluded that they "do not fall within

tablished test for attorney-client privilege: whether a client is seeking or obtaining confidential legal advice from his or her lawyer.

This Court is charged with interpreting the scope of the attorney-client privilege "in the light of reason and experience." Fed. R. Evid. 501. Both reason and experience support the adoption of the significant purpose test. First, by protecting significant confidential communications, the privilege encourages clients to seek legal advice regardless of whatever other purposes the communication may also serve, the test neither expands nor contracts the long-established boundaries of the privilege.

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ARGUMENT

I. Dual-Purpose Communications Are Entitled To Robust Attorney-Client Privilege Protection

1. "The attorney-client privilege is the oldest of the privileges for confidential communications known to the common law." *Upjohn*, 449 U.S. at 389. Decisions about the scope of the privilege are "guided by 'the principles of the common law * * * as interpreted by the courts * * * in the light of reason and experience.'" *Swidler & Berlin*, 524 U.S. at 403 (quoting Fed. R. Evid. 501). The privilege protects from disclosure confidential communications between a client and attorney made to obtain or provide legal advice. See *Fisher*, 425 U.S. at 403; Restatement § 68; 8 Wigmore, Evidence § 2292.

This Court has long recognized that a robust attorney-client privilege safeguards vital public interests. As the Court explained in *Upjohn*, the privilege "promote[s] broader public interests in the observance of law and administration of justice." 449 U.S. at 389; see also *Hunt* v. *Blackburn*, 128 U.S. 464, 470 (1888) (explaining that the attorney-client privilege is "founded upon the necessity, in the interest and administration of justice, of the aid of persons having knowledge of the law and skilled in its practice"). The privilege achieves those public interests by "encourag[ing] full and frank communication between attorneys and their clients," on the understanding that such open and honest dialogue will provide attorneys with the full information they need to provide "sound legal advice" to their clients. *Upjohn*, 449 U.S. at 389.

By the same token, this Court has long understood that affording too narrow a scope to the privilege

389. The privilege achieves those public interests by "encourag[ing] full and frank communication between attorneys and their clients, on the understanding that such open and honest dialogue will provide attorneys with the full information they need to provide "sound legal advice" to their clients. *Id.*

that legal advice related to "what strategies to pursue" is protected).

Examination of these dual-purpose communications makes clear they were sent and received not just for "tax preparation by attorneys in a vacuum," but "as an integral part of the total legal services lawyers provide their clients." *Willis*, 565 F. Supp. at 1203; JA 17.

In short, many of the communications ordered disclosed under the district court's single primary purpose analysis would have been protected under the significant purpose test.

CONCLUSION

The judgment of the court of appeals should be reversed.

Respectfully submitted,

Evan J. Davis
HOCHMAN SALKIN TOSCHER PEREZ P.C.
9100 Wilshire Blvd, Suite 900W
Beverly Hills, CA 90212
(310) 281-3200
Davis@taxlitigator.com

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Counsel of Record
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J. Max Rosen
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Rachel G. Miller-Ziegler
Dahlia Mignouna
MUNGER, TOLLES & OLSON LLP
601 Massachusetts Ave. NW
Suite 500E
Washington, DC 20001-5369
(202) 220-1100
Donald.Verrilli@mto.com

Counsel for Petitioner

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Certificate of Compliance

I certify that this brief complies with the word limit of Supreme Court Rule 33.1(g). 13,000 words for a brief on the merits for a petitioner or appellant, and that it contains 2,271 words, excluding the parts that Rule 33.1(d) excludes.

Respectfully submitted,

Daniel B. Levin
Counsel of Record
MUNGER, TOLLES & OLSON LLP
350 South Grand Avenue, 50th Floor
Los Angeles, CA 90071-3426
(213) 683-9135
Daniel.Levin@mto.com

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MUNGER, TOLLES & OLSON LLP
601 Massachusetts Ave. NW
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Washington, DC 20001-5369
(202) 220-1100
Donald.Verrilli@mto.com

Counsel for Petitioner